

be accurate or if such correction is not required by applicable law.

Retention of Collected Data

Except as otherwise permitted or required by applicable law or regulatory requirements, we may retain your personal data only for as long as we believe it is necessary to fulfill the purposes for which the personal data was collected (including, for the purpose of meeting any legal, accounting or other reporting requirements or obligations) and for IT archival purposes.

Personal data for data subjects in the European Union is by default erased by GitLab after termination of your employment, with the exception of certain types of personal data, which may be stored for an extended period of time due to administrative purposes, e.g. for payment of retirement income or for giving references to other employers, or where such personal data must be retained to comply with regulatory requirements.

You may request that we delete the personal data about you that we hold, provided that we reserve the right not to grant such request if we are not required to delete personal data under applicable law. There are instances where applicable law or regulatory requirements allow or require us to refuse to delete this personal data. In the event that we cannot delete your personal data, we will inform you of the reasons why, subject to any legal or regulatory restrictions.

To request deletion of your personal data, please submit your request via this [Deletion Request Form](#).

Resolving Concerns

If you have questions or concerns regarding the handling of your personal data, please contact GitLab's People Operations Group or DPO. Alternatively, you may report concerns or complaints to the Legal Department.

You may also anonymously report violations of policy or law using our Third-Party managed Compliance & Fraud Prevention Hotline. You can access the Hotline by going to [Questions, Reporting, and Effect of Violations](#) section of the Code of Ethics

Changes to Privacy Policy

We may change this Privacy Policy at any time by posting notice of such a change in the revision table below. The effective date of each version of this Privacy Policy is identified in the revision table.

Security of Collected Information

We are committed to protecting the security of the personal data collected, and we take reasonable physical, electronic, and administrative safeguards to help protect the data from unauthorized or inappropriate access or use.

Additional Rights

You may also have the following additional rights, subject to certain exceptions and

limitations as specified in applicable law:

Data portability

Where we are relying upon your consent or the fact that the processing is necessary for the performance of a contract to which you are party as the legal basis for processing, and that personal data is processed by automatic means, to the extent provided under applicable law, you have the right to receive all such personal data which you have provided to GitLab in a structured, commonly used and machine-readable format, and also to require us to transmit it to another controller where this is technically feasible;

Right to restriction of processing

You have the right to restrict our processing of your personal data where:

- You contest the accuracy of the personal data until we have taken sufficient steps to correct or verify its accuracy;
- Where the processing is unlawful, but you do not want us to erase the information;
- Where we no longer need the personal data for the purposes of the processing, but you require them for the establishment, exercise or defense of legal claims; or
- Where you have objected to processing justified on legitimate interest grounds (see below) pending verification as to whether GitLab has compelling legitimate grounds to continue processing.

To the extent required by applicable law, where personal data is subjected to restriction in this way we will only process it with your consent or for the establishment, exercise or defense of legal claims.

Right to withdraw consent

Where we are relying upon your consent to process data, you have the right to withdraw such consent at any time. You can do this by contacting GitLab's People Operations Group or DPO.

Right to object to processing justified on legitimate interest grounds

Where we are relying upon legitimate interest to process data, then you have the right to object to such processing, and we must stop such processing unless we can either demonstrate compelling legitimate grounds for the processing that override your interests, rights and freedoms or where we need to process the data for the establishment, exercise or defense of legal claims. Normally, where we rely upon legitimate interest as a basis for processing we believe that we can demonstrate such compelling legitimate grounds, but we will consider each case on an individual basis.

You also have the right to lodge a complaint with a supervisory authority, in particular in your country of residence, if you consider that the processing of your personal data infringes this regulation.

SECTION: legal/privacy/gdpr.md

Under various global data privacy laws, GitLab users have the right to request that GitLab provides you with information about the personal data GitLab has about you. Users also have the right to request deletion of their personal data and complete removal of their GitLab.com account in accordance with these laws. Though the laws apply only to individuals in certain geographic areas, GitLab accepts requests for data access, correction and deletion from all of our users worldwide.

To submit these requests, please provide your information using this Personal Data Request form.

Please note that:

- we will request additional information in order to ensure proper verification of identity
- in many circumstances, we will not be able to provide a full export of associated repositories
- (if requesting account deletion) any groups that you're a sole owner in will be deleted, along with any projects contained therein

Once you've submitted your request, we'll have the various teams review our systems for your personal data and send you final confirmation after this process is complete.

SECTION: legal/privacy/law-enforcement-guidelines.md

These Guidelines are for law enforcement officials conducting investigations concerning GitLab and for our privacy-forward users who want to know what information we may share with law enforcement.

Transparency is a core value at GitLab, and these Guidelines explain what GitLab is, the types of data we have, as well as set out expectations for both law enforcement officials and GitLab users and customers.

Background

GitLab Inc. provides a collaboration platform for software developers, allowing teams to develop software on a single platform for the entire organization. GitLab is available as Software-as-a-Service (SaaS), Dedicated, and Self-Managed:

- SaaS and Dedicated GitLab subscriptions are hosted in GitLab-managed cloud environments.
- Self-Managed GitLab subscriptions are hosted on the customer's own infrastructure. GitLab, Inc. does not have access to or visibility into accounts or data for users on a self-managed subscription; therefore, we are unable to comply with any requests for User Information related to self-managed subscriptions.

GitLab users trust us with their software, projects, and code and we consider it critical to maintain that trust by keeping user data safe, secure, and private, to the extent permitted by law.

General Guidelines

Law enforcement officials are encouraged to review and understand these Guidelines prior to submitting a request for information related to GitLab account holders and customers ("User Information").

These Guidelines are intended to serve as a resource but do not create any obligation or enforceable right against GitLab, nor do these Guidelines constitute legal advice or a waiver of any objection by GitLab in any particular scenario. GitLab's policies may be updated or changed in the future without further notice to law enforcement.

- GitLab responds to law enforcement requests in accordance with GitLab's Privacy Statement and Subscription Agreement. GitLab respects the laws of the jurisdictions in which we operate as well as the privacy and individual rights of our customers. In light of those customer rights, GitLab provides User Information only when legally required to do so.
- Therefore, we carefully review each law enforcement request to ensure there is a valid legal basis and that the request complies with applicable law.
- To obtain User Information from GitLab, law enforcement officials must provide legal process appropriate to the kind of information sought, such as a subpoena, court order, or warrant.
- GitLab will not provide non-public User Information content (e.g. the content of a private repository) unless served with a valid search warrant, issued on a showing of probable cause by a federal or state court authorized to issue search warrants, which requires GitLab to disclose the content.
- GitLab narrowly construes requests for data and may seek to limit or object to requests that lack sufficient identifiers, seek a large amount of information, affect a large number of users, or are otherwise overbroad. This includes requests which seek User Information looking back more than one (1) year.
- GitLab will object where production is prohibited or where the legal process served is insufficient to compel production of the requested data under the Electronic Communications Privacy Act or other applicable law.
- GitLab reserves the right to appeal any request for information where available and shall not disclose the requested information until required to do so by law.
- GitLab reserves the right to seek reimbursement for the costs associated with responding to law enforcement requests, where appropriate.

User Notice Policy

GitLab's policy is to notify users of any pending request for their account or repository information unless prohibited by law or a court order. Before disclosing User Information, we will make a reasonable effort to notify any affected account owner by sending a message to their verified email address, with a copy of the subpoena, court order or warrant and provide them with an opportunity to object to the disclosure. This notice will be delivered no less than seven (7) calendar days prior to production. GitLab may, in its sole discretion, shorten or forgo the notice period for emergency situations. Law enforcement officials who believe that notification would jeopardize an investigation should obtain an appropriate court order that specifically prohibits customer notification, such as an order issued under 18 U.S.C. § 2705(b).

If a request places GitLab on notice of an ongoing or prior violation of our Community Code of Conduct, we will take action to prevent further violation, which may include account termination, suspension and other actions that may notify the user that GitLab and/or others are aware of their misconduct. If you believe in good faith that GitLab taking such actions

would jeopardize an ongoing investigation, you may request that GitLab defer such action in your request. We will evaluate such requests on a case-by-case basis. It is the responsibility of the requesting law enforcement official to make this request at the time legal process is served, as it is GitLab's policy and intent to enforce its terms of use.

Serving a Valid Law Enforcement Request & Contact Information

```
<style type="text/css">
.tg {border-collapse:collapse;border-spacing:0; min-width:80% !important; display: table !important;}
.tg td{border-color:black;border-style:solid;border-width:1px;font-family:Arial, sans-serif;font-size:14px;
    overflow:hidden;padding:10px 5px;word-break:normal;}
.tg th{border-color:black;border-style:solid;border-width:1px;font-family:Arial, sans-serif;font-size:14px;
    font-weight:normal;overflow:hidden;padding:10px 5px;word-break:normal;}
.tg .tg-0pky{border-color:inherit;text-align:left;vertical-align:top}
.tg .tg-0lax{text-align:left;vertical-align:top}
</style>
<table class="tg">
<thead>
<tr>
<td class="tg-0lax">GitLab, Inc.<br>Attn: Legal Department<br>268 Bush St., No 350<br>San Francisco, CA 94101</td>
<td class="tg-0lax">GitLab Federal, LLC<br>Attn: Legal Department<br>1775 Tysons Blvd., Floor 5<br>Tysons, VA 22102-4285</td>
</tr>
</thead>
</table>
```

Courtesy copies may be sent to: legal@gitlab.com

While we agree to accept service of law enforcement requests by these methods, neither GitLab nor our customers waive any legal rights based on this accommodation.

Each request must meet the following facial requirements:

- Issued on government letterhead or with a caption to identify the court that issued the process and the case number;
- Dated and signed by an attorney, government official, or judge;
- Provided in PDF format if delivered by email;
- Addressed to GitLab, Inc. or GitLab Federal, LLC, as applicable;
- Specifically identify the user whose data is requested (see required identifiers below);
- Specifically identify the types of data requested;
- Specifically identify the legal basis for the request;
- Specify to whom the responsive data should be produced.

Please note that requests for testimony must be personally served on our registered agent for service of process. We do not accept service of such requests via email.

Registered Agent: Corporation Service Company, 251 Little Falls Dr., Wilmington DE 19808

Available GitLab User Information

GitLab will review and respond to requests for User Information pursuant only to a valid, enforceable government request, such as a subpoena, court order, and/or warrant, depending on the type of information request, which GitLab has determined has been issued within the scope of the power of the requesting authority or law enforcement body.

User Information Responsive to a Subpoena

- Basic subscriber information available under ECPA; and
- Customer support records.

User Information Responsive to a 2703(d) Court Order

- Basic subscriber information available under ECPA;
- Customer support records;
- Metadata related to services usage activity;
- Metadata related to website usage; and
- Billing invoices.

All other User Information requires a search warrant.

Preservation Requests

GitLab will preserve User Information for ninety (90) days upon receipt of a formal request from law enforcement in connection with an official criminal investigation and pending the issuance of a court order or other legal process. Law enforcement may request one (1) extension of the preservation request for an additional ninety (90) days. If law enforcement agents do not request an extension before the expiration of the initial 90-day preservation period and/or do not serve GitLab with compulsory legal process before the expiration of the preservation period, the preserved information will be deleted after the preservation period expires. GitLab may, in its sole discretion, send a reminder to the law enforcement agent that a preservation request expiration date is approaching. However, it is entirely incumbent upon the law enforcement agent to track the expiration date for a preservation request and notify GitLab of any request to extend the preservation period.

Preservation requests must be sent on official law enforcement letterhead, signed by a law enforcement official and must include:

- Required identifiers for the user whose information is requested to be preserved;
- A statement that steps are being taken to obtain a court order or other legal process for the data sought to be preserved.

Preservation requests should be delivered to the contact information provide above.

Required Identifiers to Obtain User Information

When requesting User Information or submitting a preservation request, law enforcement should

provide as much of the following information as is available for GitLab to respond in an effective and timely manner:

- Name (note: name alone is insufficient and must be accompanied by at least one other identifier)
- Username
- Namespace
- Email address
- IP address

International Law Enforcement and Public Authority Requests

U.S. law authorizes GitLab to respond to requests for User Information from foreign law enforcement agencies that are issued by a U.S. court by way of a Mutual Legal Assistance Treaty (MLAT) request. GitLab will respond to MLAT requests only when they are properly served, appropriately scoped, within the power of the requesting authority or agency, and otherwise in accordance with applicable laws. We will evaluate emergency requests from foreign law enforcement on a case-by-case basis consistent with U.S. laws and the laws of other countries if applicable.

Emergency Requests

GitLab evaluates emergency requests on a case-by-case basis. If, based on information provided by law enforcement, GitLab has a good faith belief that there is a legitimate emergency involving imminent danger of death or serious physical injury to any person, or other exigent circumstances, GitLab may provide information necessary to prevent that harm if we are in a position to do so, consistent with applicable law.

Emergency requests may be submitted to legal@gitlab.com with the subject line: "Emergency Disclosure Request" along with this completed form.

SECTION: legal/privacy/product-usage-events-faq.md

This page answers frequently asked questions about customer product usage event data collection.

Important Notes:

- The information in this FAQ only pertains to event collection for GitLab Self-Managed and Dedicated.
- When we refer to event collection in this FAQ, we are talking about product usage events for all features, excluding those related to GitLab Duo. For more information, see our Customer Product Usage Information page.
- This FAQ is intended to address additional questions that are not already covered in our documentation.

For foundational details about event data collection, configuration steps, and privacy practices, please refer to the documentation and the related blog post.

Frequently Asked Questions

Q: Does event-level data include source code or other customer-created content stored within GitLab?

A: No. Event data does not include source code nor any customer-created content. For more on what is and isn't collected, see our documentation.

Q: Will event-level insights be shared only via CSMs, or also in the GitLab UI or portal?

A: Once event collection begins, CSMs will have access to this data and can use it to provide tailored insights. We do plan to surface this data back to our customers in the future. We'll share more details and timelines as they become available.

Q: How long is event data retained by GitLab?

A: Event data will not be retained beyond 3-years from the point of collection.

Q: What's the expected volume or amount of data for a given deployment?

A: Please refer to our documentation.

Q: How can customer security teams inspect the data that is transmitted?

A: We plan to make logs available in 18.0 so that customers can inspect the data that is transmitted. Documentation will be available here once this is released.

Note: While these logs provide thorough visibility into data transmission, they're designed specifically for inspection by security teams rather than feature usage analysis.

For insights into feature usage, we recommend waiting for our upcoming in-product adoption reports, which are purpose-built for feature usage analytics.

Q: Are there situations where event data is opt-out for Self-Managed by default?

A: Yes, we will not collect events data by default from instances where one of the following applies:

- The instance is on an offline license;
- The instance is air-gapped; or

- The instance has already been approved by either its Sales representative or Customer Support for disablement of Operational Service Ping Data.

SECTION: legal/process-for-ux-research-prize-draws/index.md

Overview

This process is for use by the UX Research Team to conduct prize draws in connection with routine SUS Surveys and other ad hoc surveys which are intended to collect feedback from GitLab users regarding features, navigation, and other items related to improving the user experience.

This process uses an automated workflow for the UX Research Team to generate rules. This is accomplished through a Google Form and not through a GitLab issue. Provided that the request satisfies certain pre-determined requirements, the requestor will receive a set of Abbreviated Rules almost immediately (minutes to an hour). If the request does not satisfy the pre-determined requirements use of the Promotional Games Legal Template will be required.

Process

1. Review the Eligibility Requirements for proceeding under this Process. Prize draws which do not meet the Eligibility Requirements in full cannot proceed under this process. Refer to the mainstream review and approval process for Promotional Games that do not meet the Eligibility Requirements.

1. Complete the Request Rules for a Promotional Game Google form.

1. You will receive an email with the Abbreviated Rules as an attachment. Please review the Standard Promotional Rules and Abbreviated Rules section for details on how the Abbreviated Rules work in connection with the standard set of rules created for this process.

1. Create a separate screen/page within the survey where the participant can select to be entered into the Prize Draw and view the Abbreviated Rules. Follow the guidelines for the proper administration of the Prize Draw when creating this screen/page.

1. Determine eligibility of all entries prior to the selection of the winner(s) as described in the administrative responsibilities.

1. Validate and verify the proposed winner(s) prior to distributing prizes. Instructions for this are located in the administrative responsibilities.

Eligibility Requirements for proceeding under this Process

1. The only type of promotional game permitted under this process is a Prize Draw. Please see this section of the handbook to learn about the types of promotional games permitted at GitLab.

1. The prize value of each individual prize must be under \$600 USD.

1. The total value of all prizes must be under \$2,100 USD.

1. Eligible countries for inclusion:

1. Australia, Canada, Ireland, Japan, Switzerland, United Kingdom and the United States.

1. France and Germany can be included provided that translation requirements are possible.

Legal does not provide translation services.

1. Denmark can be included if the individual prize value is under \$30 USD.

1. Participants in the Prize Draw must:

1. Be legal residents of the included countries;

1. Be at least 18 years of age on the date of entry;
1. Not be an employee of GitLab; and
1. Not be a family member or living in the same household as a GitLab team member.

Proper Administration of the Prize Draw

1. Within your survey you will need to add a separate screen/page where the participant can select to be entered into the Prize Draw. A suggested way to do this is to have the participant tick a box yes/no to enter the prize draw, and if they tick "yes" then capture the required information (no boxes should be pre-ticked). To enter collect the name, email, country and zip/postal code. If someone attempts to enter with a country that is not within the promotional territory, the system collecting entries should automatically flag that entry as ineligible. You are not required to notify the entrant that they are ineligible.

1. On the screen/page where the prize draw is discussed, certain information must appear prior to any tick box or text field to enter. The participant must be presented with the Abbreviated Rules (not a link to the Abbreviated Rules) after a one sentence summary inviting them to enter. By way of example, it can read as follows:

plain

Thank you for completing the survey. Please indicate if you wish to enter the Prize Draw described below.

[insert the Abbreviated Rules as generated from the request]

☐ Yes, I want to enter the Prize Draw after reading and accepting the terms described and linked above.

☐ No, I do not want to enter the Prize Draw.

Please provide the following information to be entered into the Prize Draw:

Name:

Email:

Country of Residence:

Zip/Postal Code:

1. You may not advertise the prize draw outside of the email distribution. If you are advertising the prize draw at an in-person event, the abbreviated rules should be a part of the same visual space as the remainder of the advertising message and should not be made available to any person not attending the in-person event. If you are advertising the prize draw at a virtual event, we recommend an approach similar to the survey screen language described above. The prize draw should not be advertised to attendees of an in-person or virtual event ahead of time or after the event has ended.

1. No changes are permitted to the prize draw, the abbreviated rules, or the plan for advertising after the time period to enter has begun. The reason for this is that the countries designated as eligible under this process were selected in part on the basis that the prize

draw is a closed audience, meaning it is not advertised to the general public. If you wish to advertise to additional persons or a broader audience to raise interest in your study or survey using the prize draw as an incentive, then you should not use this process and instead use the regular channel of seeking legal approval for a promotional game.

Administrative Responsibilities

1. The DRI for each prize draw is responsible for determining the eligibility of entries prior to selecting a winner. This may be done manually or through an automated process and should include the rejection of all entries by an individual who submits more than 1 entry, the rejection of any entries where the participant is not a resident of a country within the promotional territory, and the rejection of any entries which do not meet eligibility requirements.

1. The DRI for each prize draw is also responsible for qualifying every proposed winner prior to distributing prizes. This is accomplished through the use of a Declaration of Eligibility and Release which should be emailed to the proposed winner when they are initially notified. There is a defined window of time for the Declaration to be returned by the proposed winner and failure to do so will result in forfeiture of the Prize. Should a proposed Winner fail to return the Declaration, the DRI may select an alternate winner from the remaining pool of eligible entries, but you are not required to do so. The Declaration of Eligibility and Release will contain personal data of the winner and therefore must be treated in accordance with GitLab standards for the security and protection of personal data. It must also be retained for 24 months after the winner is confirmed.

- Google Drive folder to store the full executed Declarations

Standard Promotional Rules and Abbreviated Rules

There is a set of Official Rules which applies for every Promotional Game offered and is permanently hosted here. The Official Rules are structured and formatted so that they apply to every prize draw. The details which apply to a specific prize draw are outlined in the Abbreviated Rules - generated through the automated workflow of the Google form.

Abbreviated Rules will generate upon submission of the Google Form and will look similar to this:

SECTION: legal/readmes/_index.md

SECTION: legal/readmes/emilyplotkin.md

Emily Plotkin, Senior Director, Legal - Employment

This page is intended to help others understand what it might be like to work with me, especially people who haven't worked with me before.

It's also a well-intentioned effort at building some trust by being intentionally vulnerable, and to share my ideas of a good working relationship to reduce the anxiety of people who might be on my team.

About Me

I am a lawyer, wife, boy-mom, cat-mom, horse-mom, daughter, former and wannabe-again endurance athlete, just trying to keep all the balls up in the air and every once in a while having to make the choice of which one to drop. In my professional life, I want to help build a company where team members trust each other, trust business decisions, and all work together toward a common goal.

Related Pages

<https://www.linkedin.com/in/emily-hunter-plotkin-52b98537/>

How You Can Help Us Help You

The Legal Employment team supports the relationship between GitLab and its team members. We generally monitor employment compliance requirements for each of the locations where we have team members and support our People team in supporting - you guessed it - our People.

If you're seeking help from the Legal Employment team, have an idea of your end goal. Essentially, what problem are you trying to solve and how can we help you solve it?

Provide us more information than you think we need so that we can understand the full context of the issue.

My Working Style

I prefer to operate behind the scenes. If things are going well, you might not even know that my team has been involved! Generally, I make the best connections via one on one interactions, so please feel free to reach out just to meet me. As a reminder, however, I cannot provide individual legal advice to anyone. My role is to provide advice on behalf of GitLab.

What I Assume About Others

I assume that if we work at GitLab we are working toward a common goal of seeing GitLab succeed. In that, I take to heart our efforts to assume positive intent, and I work hard to give the benefit of the doubt.

What I Want To Earn

I want to earn your trust and respect and for you to know that you can reach out to me as a trusted partner to provide strategic guidance on difficult matters.

Communicating With Me

I like words. Not too many words, but clear words. And bullet points. That's how I think. I'm not visual with videos, graphs, or maps. Just give me words (maybe a chart) and a good

explanation of where you are, how you got to where you are, and where you want to go.

SECTION: legal/readmes/joelfluss.md

About Me

Born in Pleasanton, CA, I am the fifth of five boys. In high school and college I swam and played water polo. I attended UC Santa Cruz for undergrad and The University of Texas for my masters in business. I love to surf, swim, ski and go for long hikes in nature and around cities. Reading is such a joy to me, and I try and mix fiction and non-fiction in equal parts across all subjects and genres. If I had all the money in the world I would be a perpetual student, attending universities all over the world and taking classes on everything from architecture to zoology.

Current Role

I am currently on the Corporate Development M&A team. Our job is to source, evaluate and acquire companies that accelerate GitLab's product roadmap and vision. We partner closely with product, finance, legal and several other cross-functional teams to ensure a successful deal outcome. M&A is tough to get right, and most times building is a better option than buying. For that reason, we lean heavily on our product team to be a partner with us throughout the process to ensure we can properly assess the benefits of building vs. buying.

My Working Style

My general approach, but applicable to Corporate Development, is always to first just listen. At the beginning of each potential deal I go in with the mindset that everyone involved knows more about the subject matter and company being evaluated than I do. After being initially introduced to the subject I read up on journal articles, analyst research, company filings and any other research I can find. I then come back to the subject matter experts (usually the PM and engineering teams) and ask more informed questions tailored towards answering questions such as (but not limited to)...

- Why is this product or feature important to GitLab?
- What are customers using instead of GitLab to get the job done?
- Why is this company important to GitLab more so than any of its competitors that we could possible acquire instead?
- What alternatives do we have if we choose not to buy?
- Is this the absolute best use of resources for this particular product team?

How I communicate / the best ways to communicate with me

I am based in the Central U.S. time zone and like to be online a little before 8:00 am Cst. I have no hard-set hours where I am unreachable, however I maintain that working late in the evening has diminishing returns; I would rather get up early than stay up late to meet a deadline. Each day I make sure to get some exercise, I find that exercise is the best way for me to stay mentally sharp. To exercise I usually swim or jog, disconnected from everything. I enjoy building rapport and meeting my colleagues for a coffee chat, don't be surprised if I

send you a coffee chat invite after the first time we interact.

Strengths & Areas of Improvement

I am quick to admit when I do not understand a subject, however I love to learn. Being curious and knowing how to find answers has always been one of my strengths that I am proud of. I learned to learn by going through the CFA program curriculum, a self-taught exam-based certification. I have also become comfortable admitting when I am wrong; willing to have my mind changed if there is data or evidence to support a counter-claim to an entrenched belief.

I am always working to improve my ability to confront. I realize I am sometimes too passive or quiet. I am always trying to force myself out of my comfort zone to say something if I see something incorrect, unjust or questionable.

The Legal Team's World Famous "Two Truths & a Lie" Segment

- Our family owns a villa in Palermo
- My dad is a nuclear weapons specialist engineer
- My eyes are two different colors

Favorite Sports Teams

- Crystal Palace
- Golden State Warriors
- NY Jets
- Oakland Athletics

Favorite Books

- Business Adventures
- For Whom the Bell Tolls
- Jitterbug Perfume
- P.G. Wodehouse (anything)
- The Portrait of Dorian Gray

Places I have lived

- Atlanta, GA
- Austin, TX
- Boston, MA
- Santa Cruz, CA
- San Francisco, CA
- Seattle, WA
- Tempe, AZ

Places I'd like to live

- Denver, CO
- Paris
- Porto, Portugal

- San Diego, CA
- Santa Fe, NM
- Sevilla, Spain
- Tel Aviv, Israel
- Vancouver, Canada

SECTION: legal/readmes/miguelsilva.md

My name is Miguel Silva and I am a Contract Manager for GitLab.

My main focus is providing legal support to all functions that bring revenue to GitLab; namely, by drafting and negotiating agreements, and answering legal-related questions.

My Strengths

1. I do my very best to solve problems and find alternatives to overcome obstacles in order to achieve the expected result;
1. I am always ready (and love) to discuss any issues that may arise · I love to learn and listen to other points of view, understand rationales and the goals behind the matters at hand;
1. I always keep my promises · if I commit to a certain deadline, I will deliver within it;
1. I can (and love to) take direct feedback and don't get discouraged easily;
1. I take the well-being of my team seriously · if I see that a colleague is struggling or needs support, I will do my very best to help.

Areas of Improvement

1. I struggle to be empathic when someone (i) is not willing to do their job and does not take ownership on matters that they should be responsible for; and (ii) asks the same question over and over again when it was already properly explained and acknowledged by the requester;
1. As I come from a non-technical background sometimes I struggle with more technical issues · please be patient and assume I don't know the basics, I will definitely not get offended;
1. As a non-English speaking native sometimes my pronunciation, choice of words, and grammar are not the best - I welcome corrections!

Communication

I can be contacted through Slack, email or any other communication channel you feel more comfortable with (as long as I have it and know how to work with). However, please keep in mind that, for record purposes and in accordance with our GitLab internal process, legal revenue related questions should be asked by opening a Legal Request in SFDC. The Legal slack channel is also available so that other GitLab colleagues can also have access to the question and respective answer (if not project related and/or confidential).

Outside of GitLab

Apart from work I like to play soccer, bodyboard, travel and last, but definitely not least, be with my family and friends!

SECTION: legal/readmes/rashmichachra.md

This page, like me, is a WIP. I'm practicing our value of · iteration. I welcome all feedback!
Click [here](#) to see my LinkedIn.

Rashmi Pronunciation Hint

A pronunciation hint for Rashmi: It's like when I try to hurry you along and you say: Rush me
don't rush me. Easier than it looks, right?

My Job

My job is to work with teams across the GitLab landscape on corporate and securities topics. That means I work on, among other matters: (a) acquisitions the company may desire to make; (b) matters related to the company's stock; (c) external and internal communications; and (d) strategic projects. I also work on corporate governance matters which means that I work with GitLab's Board of Directors and matters related to GitLab's direct and indirect subsidiaries.

How I Work

I very much enjoy working collaboratively with all of our amazing Team Members and work closely with our Finance, Tax and Investor Relation teams. I find that when you bring a diverse group of awesome team members together, awesome ideas are born. Everyone has a unique perspective and I value each one of them.

The Best Ways to Communicate With Me

The absolute fastest and best way to contact me is through Slack. If you would like to set up a Zoom meeting, my calendar is viewable to anyone at GitLab and everyone is welcome to grab a free slot on my calendar without asking. If it is a coffee chat, we don't need an agenda. I love talking about all things cooking and traveling. I have been accused of being a workaholic by my family and I am trying to change that so I generally try not to work on the weekends.

Random Facts About Me

1. Mom of two boys that are 10 years apart in age. They are my heart.
1. I've lived in 2 countries, 5 states in the US and the District of Columbia.
1. I LOVE to travel and I LOVE to see the world through my kids' eyes. Amazing what they see and what we take for granted.
1. I have a seriously large extended family (over 50 first cousins).
1. I really enjoy (most of) the Star Trek and Star Wars universes. My husband is an avid fan and I have seen every one of the movies, the series, and many of the spin-offs. Spock is my all time favorite sci-fi character.

What I Do Fairly Well

1. Listening: Try me! Whether you need a sounding board, a sanity check or maybe some advice, I will hear you out.

1. Collaborating: I love collaborating across all teams. What a great group of Team Members we have! Each one brings something unique to the table and in the end we have a better product.
1. Being Patient: I have been often told that I have a lot of patience. I think it goes hand and hand with being a good listener.
1. Cooking: I dabble in all sorts of cuisine. I prefer eating but I have been known to whip up a good meal too.

What I Can Do Better

1. Technology: This is my first job with a technology company. I know the basics but I have a lot to learn and am enjoying learning something new every day!
1. Advocating For Myself: I sometimes struggle with talking about myself. This readme is really hard for me! I can be a great advocate for others but not so great for myself.
1. Being Too Literal: I am on occasion too literal. I need to be more effective at reading through the lines.
1. Taking Breaks: I can sit in my chair and work for many hours straight. It's not healthy and I have to build in time to get up and walk around (at least).

Favorite Restaurants

I love to eat. ANYWHERE with great food works for me. Good food with a good view goes to the top of the list!

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About Me & My Role

Communicating With Me

Strengths

Flaws

Random Facts

SECTION: legal/readmes/stacycline.md

This page is intended to help others understand what it might be like to work with me, especially people who haven't worked with me before.

What I do at GitLab

Hi! I'm Stacy and I'm GitLab's Senior Director of Environment, Social and Governance (ESG). Here are a few things I do:

- Build GitLab's corporate sustainability strategy to ensure we're creating long-term impact

for our stakeholders

- Identify gaps where GitLab could be making a bigger impact whether that's through NGO partnerships, emissions reduction, donations to non-profits or connecting team members to causes
- Report to our stakeholders such as investors, customers and team members on our progress and plans as it relates to ESG
- Collaborate and work cross-functionally with just about every GitLab team

About me

I grew up in Minnesota and at 18 I moved to Arizona because as my husband likes to say, "you don't have to shovel sunshine."

I started my career in Public Relations where I quickly found a passion in Corporate Social Responsibility and I have spent the last decade in impact-driven roles helping companies become more sustainable.

I love everything outdoors - hiking, golfing, or just sitting on a patio enjoying a glass of wine or a local beer. I love to travel with my husband and find new and fun things to do with our son and very fluffy schnoodle, Penny.

My working style

I love efficiency and am always ready to take action. I tend to find solutions, make decisions quickly and work on executing. If you need me to slow down or just want to have an open discussion, great! Please let me know that ahead of time so I can adjust my approach. If you need to get something done quickly or are stuck on a problem, I'm your gal.

My StrengthFinder:

Achiever: I start each day at zero and by the end of the day I need achieve something tangible to feel good about myself - this isn't just workdays but weekends too!

Discipline: I like order, plans and routines. I'm not a big fan of surprises or last minute changes although I'm working on that!

Activator: Let's go! Once a decision is made, I like to immediately move to action. This is why the iterate value resonates with me because there's always some small action we can take even if we don't see the full picture yet.

I love feedback and know I can sometimes be too focused on executing - please tell me if you need me to take a different approach or just have general feedback to share.

Communicating with me

My typical hours are between 8:30am-5pm Arizona time. I am completely offline from 5-7:30pm as that's when I spend precious time with my son. One of the draws to GitLab was the focus on family and friends first and I'm really trying to make that a priority!

I prefer slack but if you have a lot of content to share please open an issue or email me.

Always happy to jump on a call!

SECTION: legal/safe-framework/index.md

SAFE

Why SAFE?

GitLab has accomplished a number of milestones and Transparency has been essential to our success from the beginning. As GitLab has matured, we have evolved to viewing Transparency as both Internal Transparency and External Transparency; accordingly we want to continue to equip team members with the tools to enable responsible transparency in order to protect GitLab and our team members. To do so, there are certain factors we need to consider when we share information in the form of videos, blog posts, social media posts, interviews, presentations, epics, issues, merge requests or any other format. Accordingly, along the lines of our CREDIT values, the "SAFE" framework serves as a guide.

Also, consistent with our CREDIT values, this is a living framework and we will continue to iterate on this framework based on lessons learned in the course of GitLab's evolution.

By contributing, team members will help GitLab continue to keep our CREDIT values front and center while making sure we continue to prioritize Transparency. If you have any questions, please ask them in the safe slack channel. Please do keep in mind that if you do reach out via the safe slack channel, you should not include any sensitive information in that message because that is an open public channel. Instead, wait for a response from someone on the legal team as the sensitive information can be shared with the legal team using a DM.

For all materials requiring legal review, refer to the Materials Legal Review Process.

WHAT IS SAFE?

Sensitive:

The S in "SAFE" serves as a reminder to make sure that team members are not sharing information which could be considered Sensitive information without express approval from GitLab Legal.

Things to consider before disclosing:

1. What is considered Sensitive information?

1. Any company confidential information that is not public.

1. Any data that reveals information not generally known or not available externally may be considered sensitive information. Sensitive information includes:

- Team member data (individual performance, start dates, departures)
- Customer or partner information (logos, trademarks, spend)

1. Material nonpublic information. Material nonpublic information is any information that is not publicly available and a reasonable investor would likely consider important in making an investment decision (i.e., to buy, sell, or hold the company's stock). Examples of material nonpublic information may include:

- The company's intentions to access the capital markets (i.e. selling primary shares,

secondary stock activity, issuance of debt);

- The company's financial results;
- A possible major new customer win or loss;
- A pending exit of one or more senior executives of the company or members of the

company's board;

- The security and stability of the company's platform;
- A significant transaction;
- A pending purchase or sale of a significant asset or business; and
- A pending significant legal or regulatory proceeding or settlement.

The disclosure of sensitive or material nonpublic information may be harmful to team members or the company. If the content to be disclosed includes any of the above information, team members should seek the GitLab Legal's review via the safe slack channel. If in doubt, please inquire with the VP of Legal, Corporate via the safe slack channel before circulating this type of information externally.

Accurate:

The A in SAFE serves as a reminder to double-check that the information team members are sharing is Accurate. Things to consider before disclosing:

1. Is the information being disclosed verifiable? Is there a reference that can be cited? Is there data to backup the information and is that data saved and accessible? How would we be able to prove it is accurate if required by an external party?

1. Are you the directly responsible individual "DRI" for the accuracy of the material? If you are not able to cite a reference or you are not the DRI for this information, did you receive approval from the DRI to share this data?

Team members have a responsibility to make sure that the information they are sharing is Accurate. Team members and third parties rely on the information presented and may incorporate the same information in works they may produce. Not only should team members make sure that the information is Accurate, but they should be able to provide the underlying data, if applicable, to support the accuracy or confirm the methodology used to achieve the data. Estimates should clearly be marked as estimates. Also, if the data is continually changing, team members should indicate an "as of" date when sharing so that everyone is aware of the date the shared data is accurate as of.

Financial:

The F in SAFE serves as a reminder that the company's Financial information is so important to protect that it requires Chief Financial Officer's approval prior to sharing externally. Things to consider before disclosing:

1. Is there a Financial element such as dollars, performance metrics, or margins including actual results or future expectations contained in the information you are about to share? Is the information derived from or based on the Financial information?

1. Does the information you are about to share include any forward-looking statements? This includes quantitative (something that CAN be expressed as a number) and qualitative (something that CANNOT be expressed as a number) statements.

1. Is the information related to process and procedures rather than financials and data?

Information related to process and procedures may be safer to distribute.

- For example, it would be ok to share the timeline related to when quarterly financials need to be complete but it would not be ok to share the quarterly financial results.

Company financials, including guidance (the company's own best estimates to shareholders of its upcoming earnings), forecasts and estimates are and should be considered confidential nonpublic confidential information. Team members should also consider that information containing metrics or data can be used to figure a financial value of the company, and should therefore be considered confidential information. Examples of metrics or data that can be used to figure financial value include the number of customers in each offering tier, the contract amount of a large customer or expenses related to a category or type of third party services or vendors. Accordingly, financial information should not be disclosed publicly unless approved by GitLab's Chief Financial Officer.

Effect:

The E in SAFE serves as a reminder to be mindful about the Effect - intentional and unintentional - that the information team members are sharing may have on the company. Things to consider before disclosing:

1. Is the information being disclosed helpful/harmful to the Company, and/or team members, or could the unintended result be harmful?

1. What Effect could the information have on the "total mix" of information that is being made available?

When considering what information to disclose, team members should consider the pros and cons of the Effect the information will have on all parties inside and outside the company.

Furthermore, team members should also consider that in some instances information intended to have one Effect may have a completely different, unintended Effect. When in doubt, talking it over with a colleague or reaching out via the safe slack channel is always a good option.

Team members should also take into account each piece of information being shared as well as the information and documentation as a whole. The information you are sharing should not be viewed in a silo. Team members should examine what type of effect all the information taken together will have and how the audience may or may not interpret the information.

Any questions should be directed to VP of Legal, Corporate via the safe slack channel.

SAFE Flowchart

What if unSAFE information is shared?

What should I do if I shared or I see GitLab information which has been shared that I think might be sensitive, inaccurate, financial, or might have an effect that is harmful to the company or helpful to investors?

1. Social Media:

- If you shared or see information which has been shared via a personal social media

account that does not fit within the SAFE framework, please immediately message the company's VP of Legal, Corporate via the safe slack channel and include a screenshot when posting your message.

- After taking the screenshot, please remove the post immediately if you shared the information. The VP of Legal, Corporate and Vice President, Investor Relations will review it and advise on any further action necessary.

1. Issues and MRs:

- If you shared or see information which has been shared in an Issue or MR that does not fit within the SAFE framework, please immediately message the Company's VP of Legal, Corporate via the safe slack channel and include a link to such Issue or MR when posting your message. Also mark the MR or Issue "Confidential".

- The VP of Legal, Corporate and Vice President, Investor Relations will review it and advise on any further action necessary.

- Helpful Hint: You can use an internal note in public issues for exchanging confidential information internally.

1. GitLab Unfiltered Videos:

- If you shared or see information which has been shared via GitLab Unfiltered that does not fit within the SAFE framework, please mark the video as private. Once the video is private, please immediately message the VP of Legal, Corporate via the safe slack channel.

- The VP of Legal, Corporate and Vice President, Investor Relations will review it and determine next steps, which may include contacting the Digital Production team to have it removed.

1. Other Mediums:

- If you shared or see information which has been shared via a another medium that does not fit within the SAFE framework please send a link to the original post immediately via Slack to the VP of Legal, Corporate via the safe slack channel.

- The VP of Legal, Corporate and Vice President, Investor Relations will review it and, if necessary, contact the appropriate DRI to have the information revised to be compliant or if needed, removed.

How do we reinforce SAFE?

We reinforce SAFE by:

1. Providing a safe space to report mistakes via the safe slack channel - we assume positive intent and believe in blameless problem solving.

1. Having SAFE Ambassadors from teams across the company to help answer questions.

1. By emphasizing the SAFE framework during onboarding.

1. By using the :safe-tanuki: emoji to remind team members about the SAFE framework.

1. By providing training to our team members on responsible transparency practices and compliance regulations. These trainings reinforce the concepts of Internal GitLab Transparency, i.e. information that should be shared only with our team members, versus External Public Transparency, i.e. information that can be shared with the world.

SECTION: legal/subscription-agreement/index.md

Subscription Agreement

This Subscription Agreement (**·Agreement·**) is between GitLab Inc. with offices at 268 Bush Street, Suite 350, San Francisco, CA 94104 (or, if a different corporate entity is listed as **·GitLab·** on an Order Form [as defined below], (**·GitLab·**)), and the individual or entity signing or electronically accepting this Agreement, or any Order Form that references this Agreement (**·Customer·**). This Agreement is entered into on the earlier of, (a) Customer clicking **·Agree·** or **·Yes·** to the terms of this Agreement to gain initial access to, or use of, the Software, (b) GitLab and Customer agreeing to an Order Form referencing this Agreement, or (c) Customer is given access to the Software (**·Effective Date·**).

- Individual Signing on Behalf of Company. IF THE INDIVIDUAL ACCEPTING THIS AGREEMENT IS ACCEPTING ON BEHALF OF AN ENTERPRISE OR OTHER LEGAL ENTITY, SUCH INDIVIDUAL REPRESENTS THAT THEY HAVE THE AUTHORITY TO BIND SUCH ENTERPRISE AND ITS AFFILIATES TO THESE TERMS AND CONDITIONS, IN WHICH CASE THE TERM **·CUSTOMER·** SHALL REFER TO SUCH ENTERPRISE AND ITS AFFILIATES.

- Individual Not Authorized to Sign on Behalf of Company. IF THE INDIVIDUAL ACCEPTING THIS AGREEMENT DOES NOT HAVE SUCH AUTHORITY, OR DOES NOT AGREE WITH THESE TERMS AND CONDITIONS, THE INDIVIDUAL MUST NOT ACCEPT THIS AGREEMENT AND MAY NOT USE THE SERVICES OR SOFTWARE.

- Individual Signing on Behalf of Individual But Using Company Email. IF THE INDIVIDUAL ACCEPTING THIS AGREEMENT IS ACCEPTING THIS AGREEMENT ON HIS OR HER OWN BEHALF BUT USING AN ENTERPRISE EMAIL ADDRESS TO DO SO, SUCH INDIVIDUAL ACKNOWLEDGES AND AGREES THAT THE ENTERPRISE EMAIL ADDRESS WILL ESTABLISH A GITLAB ACCOUNT THAT WILL BE ASSOCIATED WITH THE ENTERPRISE, AND CAN AND WILL BE TRANSFERRED ENTIRELY (BOTH CONTROL AND DATA/INFORMATION WITHIN THE ACCOUNT) TO SUCH ENTERPRISE UPON SUCH COMPANY'S REQUEST. NOTWITHSTANDING, GITLAB DOES NOT ASSUME ANY LIABILITY TO THE INDIVIDUAL. AS SUCH, TO ENSURE NO LOSS OF PERSONAL CONTENT, GITLAB STRONGLY RECOMMENDS ESTABLISHING A GITLAB ACCOUNT TIED TO A PERSONAL EMAIL ADDRESS.

1. DEFINITIONS

·Acceptance· of an Order Form shall occur at the earliest of the following: (a) execution of an Order Form, (b) reference to an Order Form Quote No. within a purchase order or similar document, or (c) the use of Software.

·Additional Terms· are separate terms and conditions governing Customer's access to and use of certain (a) features in the Software, or (b) Supplemental Services available for purchase, as set forth here: <<https://about.gitlab.com/terms/>>.

·Add-On User(s)· are additional Users in excess of those that have been purchased under a Subscription via an executed Order Form or web-portal purchase.

·Affiliate· means any entity(ies) controlling, controlled by, and/or under common control with a party hereto, where **·control·** means the legal power to direct or cause the direction of the general management of the entity or the ownership of more than 50% of the voting securities in such entity.

·Appendix· are inclusions in this Agreement that state the terms by which Software is offered to Customer. The Appendices shall be considered part of the Agreement.

·Authorized Partner· is a reseller or distributor that is enabled and authorized to sell

Software.

·Contractors· are defined as third parties that Customer has engaged to manage, or otherwise use the Software, solely on behalf of Customer.

·Controlled Subject Matter· is the Software or any software or anything related thereto or any direct product thereof, collectively.

·Customer Content· is all software, information, content and data provided by or on behalf of Customer or made available or otherwise distributed through the use of the Software.

·Customer Records· collectively means books, records, contracts and accounts relating to the payments due to GitLab under this Agreement.

·Customer Success Services· means adoption services which are provided as part of the Subscription, as set forth in Appendix 1. Customer Success Services include the collection of Operational Data (as further stated in Appendix 1). Customer Success Services are only available to Customers who are purchasing Software, and are not available for Free Software.

·Customer Support· means technical support of the Software provided by GitLab.

·Designated National· is any person or entity on the U.S. Department of Treasury's List of Specially Designated Nationals or the U.S. Department of Commerce's Table of Denial Orders.

"Documentation· means the GitLab specific technical specifications, guides and policies; system requirements, and application limits related to GitLab's Software and Supplemental Services as made available within the Software platform, as set out on the dedicated GitLab Docs Website pages (<<https://docs.gitlab.com/ee/>>), or as otherwise referenced on the GitLab Website Pricing Page (<<https://about.gitlab.com/pricing/>>). Documentation does not include marketing materials or content published on the Website.

·Effective Price· means the actual price paid by Customer (List Price minus any applicable discount(s)) as set forth on an Order Form or as purchased via the Website.

·Embargoed Countries· refers collectively to countries to which the United States maintains an embargo.

·Enterprise· means the organization, company, corporation and/or other type of entity which procures the Software to be used on its behalf pursuant to the terms of this Agreement.

·Fees· are those fees set forth within the Order Form, or, fees due immediately when purchasing via the web-portal. All Fees are in U.S. Dollars unless otherwise set forth in an Order Form.

·Free Software· means the free, feature-limited version of Software provided to a Customer, User, end user, partner, or any other third party including but not limited to, the lowest tier offering of Software as made available by GitLab and Software provided for evaluation purposes.

·Individual· means a person who uses the Software on their own behalf, and not an Enterprise. An Individual must be over the age of thirteen (13) years old.

·List Price· means the list price of the GitLab Software excluding (if applicable) any discount(s) set forth in an Order Form or as purchased via the Website.

·Order Form· is a transactional document agreed to between the parties which states the Software and/or Supplemental Services being purchased, term of use, price, and other applicable transaction details. For the avoidance of doubt, the parties acknowledge and agree the terms and conditions stated within this Agreement and an executed Order Form shall govern with respect to all matters contemplated herein.

·Purchase Order· is a Customer's processing document, or similar record, which is used by Customer to demonstrate internal approval and /or record of a purchase. Any terms stated within a Purchase Order shall be null and void and are expressly rejected by the parties.

·Software· means software, and other branded offerings made available by GitLab or its Affiliate(s), including but not limited to, GitLab's DevOps Lifecycle Application Platform and applicable Supplemental Services and its related Documentation. Software does not include any Testing Features as defined below and as further described in Section 15.3.

·Subscription· refers to the applicable services, support and function(s) of the Software as provided. Subscriptions are provided in tiers / levels as described in Appendix 1 and are based on the number of Users.

·Subscription Start Date· is, unless otherwise agreed to in writing, the start date, (i) stated on an Order Form, or, the date in which Customer is given access to the Software (whichever is later), or (ii) as indicated via a Website transaction, regardless if such purchase is direct with GitLab or via an Authorized Partner.

·Subscription Term· shall begin on the Subscription Start Date and continue for twelve (12) months, unless the term length is otherwise agreed to in an Order Form or web-portal purchase.

·Supplemental Services· means additional capacity, functionality, storage, professional and success services and/or other elements that Customer may procure separately for additional Fees. Supplemental Services may be purchased by Order Form, web-portal, or statement of work as applicable. Supplemental Services will be: (i) provided as a separate line item in an Order Form or web-portal purchase, and (ii) co-termed to the underlying Subscription Term if not purchased on the Subscription Start Date.

"Testing Features· means the experiment, alpha, or beta features that are not ready for production use as further described in Section 15.3.

·User(s)· is defined as the unique and single Individual, employee, Contractor, or other third-party individual or machine authorized by Customer (in accordance with this Agreement) that requires the provision of a seat within the admin platform, who are able to access the Software purchased under a Subscription, regardless of whether the User actually accesses, or the frequency with which they access, the Software. A User must be over the age of thirteen (13) years old.

·Website· means GitLab's website located at www.gitlab.com and all subdomains, and all content, services, documentation provided on the Website.

2. SCOPE OF AGREEMENT; ADDITIONAL TERMS

2.1 This Agreement establishes a framework that will enable GitLab to provide Customer with the Software. Software is provided as part of a Subscription, as described in Appendix 1. Software provided as a hosted solution, or Software-as-a-Service (·SaaS Software·), shall be subject to the attached Appendix 2 entitled ·Software as a Service (SaaS) Offering·.

2.2 Additional Terms will apply to certain features or Supplemental Services that Customer accesses, uses, enables or otherwise purchases, including the provision of artificial intelligence functionality. If there is any conflict between this Agreement and Additional Terms with respect to such features or Supplemental Services, the Additional Terms will control.

3. ORDERING PROCESS

3.1 This Agreement applies to Software that Customer licenses directly from GitLab, a GitLab Affiliate, or from an Authorized Partner. For the avoidance of doubt, in the event Customer purchases from an Authorized Partner, GitLab shall have no obligations to Customer with respect to any terms and conditions outside of this Agreement unless otherwise agreed to in writing between Customer and GitLab.

3.2 Unless otherwise agreed to between Customer and GitLab in writing, the terms of this Agreement shall govern any and all use of the Software. Purchases of Software may take place by either:

- (i) purchasing via the GitLab Website;
- (ii) executing an Order Form with GitLab or an Affiliate of GitLab; or
- (iii) pur